

Andhra Pradesh (50 Percent Reservation to BCs, SCs, STs and Minorities in Works Contracts & Service Contracts given on Nomination) Rules, 2019

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State of Andhra Pradesh - Act

Andhra Pradesh (50 Percent Reservation to BCs, SCs, STs and Minorities in Works Contracts & Service Contracts given on Nomination) Rules, 2019

ANDHRA PRADESH

India

Andhra Pradesh (50 Percent Reservation to BCs, SCs, STs and Minorities in Works Contracts & Service Contracts given on Nomination) Rules, 2019

Rule

ANDHRA-PRADESH-50-PERCENT-RESERVATION-TO-BCS-SCS-STs-AND-MINORITIES-IN-WORKS-CONTRACTS-SERVICE-CONTRACTS-GIVEN-ON-NOMINATION-RULES-2019 of 2019

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Andhra Pradesh (50 Percent Reservation to BCs, SCs, STs and Minorities in Works Contracts & Service Contracts given on Nomination) Rules, 2019

Published vide Notification No. G.O. Ms. No. 74, Backward Classes Welfare (F), dated 16.09.2019

Last Updated 25th December, 2019

No. G.O. Ms. No. 74, Backward Classes Welfare (F). - In exercise of the powers conferred by sub-section (1) of section 9 of the Andhra Pradesh (50 Percent Reservation to BCs, SCs, STs and Minorities in Works Contracts & Service Contracts given on Nomination) Act, 2019 (Act No. 25 of 2019), the Government of Andhra Pradesh hereby makes the following Rules:

1.

Short Title.

- These Rules may be called the Andhra Pradesh (50 Percent Reservation to BCs, SCs, STs and Minorities in Works Contracts & Service Contracts given on Nomination) Rules, 2019.

2.

Definitions.

- In these Rules, unless the context otherwise requires;

(a)

"Act" means the Andhra Pradesh (50 Percent Reservation to BCs, SCs, STs and Minorities in Works Contracts & Service Contracts given on nomination) Act, 2019 (Act No. 25 of 2019);

(b)

"Works Contract" means a contract given by an Administrative Department to execute a 'Civil Work';

(c)

"Service Contract" means an agreement between a Contractor (Agency) and Customer (Office) covering the maintenance and servicing of equipment or rendering of services over a specified period which includes outsourcing of services like House Keeping, Hiring of Vehicles, Outsourcing of Personnel etc;

(d)

"Government" means the Government of Andhra Pradesh;

(e)

"Minority", for the purposes of this Act, means a community notified as such by the Central Government and includes Muslims, Christians, Sikhs, Buddhists and Zoroastrians (Parsis) as per Notification No. F.7-5/2005-MC (P), dated 18.01.2005;

(f)

"Class - V Contractor" means a Contractor who got registered with a competent authority as such, upon production of experience certificate for the prescribed period and solvency certificate for the prescribed amount and who is authorized to execute any work contract whose value is up to Rs.10.00 lakhs.

3.

Unit of Implementation.

(1)

For the purposes of awarding a Works Contract or Service Contract, a Unit is either a District or State, as the case may be.

(2)

The respective administrative Departments may, by order in writing, direct the respective local bodies to implement the provisions of the Act in accordance with the procedure prescribed hereunder.

4.

Apportionment of 50% Reservation.

(1)

There shall be 50% reservation to BCs, SCs, STs and Minorities in all Works Contracts and Service Contracts given on nomination in any unit of implementation, either District or State.

(2)

The 50% reservation shall, in turn, be apportioned among different reserved categories as mentioned below.

BC & Minorities

-

29%

SC

-

15%

ST

-

6%

Provided that 50% of the Contracts (Works as well as Services) given to the reserved categories shall be earmarked to women, as a means of horizontal reservation.

5.

Registration of Works Contractors and Service Contractors.

(1)

Registration as Works Contractor or Service Contractor is mandatory to get awarded with any Work Contract or Service Contract on nomination basis under this Act.

(2)

The Nodal Departments concerned shall prescribe the modalities for registration of Works Contractors and Service Contractors respectively.

6.

Nodal Departments and Nodal Officers.

(1)

The Panchayat Raj Department is the Nodal Department and the Engineer-in-Chief (Panchayat Raj) is the Nodal Officer in respect of Works Contracts.

(2)

The General Administration Department is the Nodal Department and the Secretary, General Administration Department is the Nodal Officer in respect of Service Contracts.

(3)

The District Collector is the Nodal Officer for both Works Contracts and Service Contracts and responsible for implementation of the Act at District Level.

7.

Exemption of Experience Certificate & Solvency Certificate.

- For registration as Works Contractors (Class - V Contractors) and Service Contractors within the purview of this Act, furnishing of Solvency Certificate and Experience Certificate is exempted for a period of three months to facilitate registration of Works Contractors and Service Contractors belonging to reserved Communities.

8.

Development of a common Web Portal.

- A common Web Portal for Works Contracts and Service Contracts will be developed within a month from the date of notification of these Rules for implementing the provisions of the Act.

9.

Roster.

- To award either Work Contract or Service Contract on nomination basis, the respective authority shall log in to the Web Portal, enter the name of the Work Contract or Service Contract and award the same on nomination basis as per the Roster in the seriatum.

10.

Monthly Reports to Nodal Departments.

- All Engineering Wings of the Administrative Departments in respect of Works Contracts and all Administrative Departments in respect of Service Contracts shall furnish monthly reports to the respective Nodal Departments as prescribed by them.

11.

Quarterly Reports to respective Welfare Departments.

- The Nodal Departments in respect of Works Contracts and Service Contracts shall furnish quarterly reports to the respective Welfare Departments as prescribed by them.

Annexure

Roster of hundred points for implementation of
50% reservation to BCs, SCs, STs and minorities (and 50%

reservation for women within that) in works contracts and service contracts

Roster Point No.

Order of Rotation (Community Wise)

Gender

1

Open Competition

Woman

2

Scheduled Caste

General

3

Open Competition

Woman

4

Backward Classes

General

5

Open Competition

Woman

6

Open Competition

General

7

Scheduled Caste

Woman

8

Scheduled Tribe

General

9

Open Competition

Woman

10

Backward Classes

General

11

Open Competition

Woman

12

Open Competition

General

13

Open Competition

Woman

14

Backward Classes

General

15

Open Competition

Woman

16

Scheduled Caste

General

17

Open Competition

Woman

18

Backward Classes

General

19

Minorities

Woman

20

Backward Classes

General

21

Open Competition

Woman

22

Scheduled Caste

General

23

Open Competition

Woman

24

Backward Classes

General

25

Scheduled Tribe

Woman

26

Open Competition

General

27

Scheduled Caste

Woman

28

Open Competition

General

29

Backward Classes

Woman

30

Open Competition

General

31

Open Competition

Woman

32

Open Competition

General

33

Scheduled Tribe
Woman
34
Open Competition
General
35
Backward Classes
Woman
36
Open Competition
General
37
Open Competition
Woman
38
Open Competition
General
39
Backward Classes
Woman
40
Open Competition
General
41
Scheduled Caste
Woman
42
Open Competition
General
43
Backward Classes
Woman
44
Minorities
General
45
Backward Classes
Woman
46
Open Competition
General
47
Scheduled Caste
Woman
48
Open Competition
General
49
Backward Classes
Woman
50

Open Competition
General
51
Open Competition
Woman
52
Scheduled Caste
General
53
Open Competition
Woman
54
Backward Classes
General
55
Open Competition
Woman
56
Open Competition
General
57
Open Competition
Woman
58
Scheduled Tribe
General
59
Open Competition
Woman
60
Backward Classes
General
61
Open Competition
Woman
62
Scheduled Caste
General
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Open Competition
Woman
64
Backward Classes
General
65
Open Competition
Woman
66
Scheduled Caste
General
67

Open Competition

Woman

68

Backward Classes

General

69

Minorities

Woman

70

Backward Classes

General

71

Open Competition

Woman

72

Scheduled Caste

General

73

Open Competition

Woman

74

Backward Classes

General

75

Scheduled Tribe

Woman

76

Open Competition

General

77

Scheduled Caste

Woman

78

Open Competition

General

79

Backward Classes

Woman

80

Open Competition

General

81

Backward Classes

Woman

82

Open Competition

General

83

Scheduled Tribe

General

84

Open Competition

Woman

85

Backward Classes

Woman

86

Open Competition

General

87

Scheduled Caste

Woman

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Open Competition

General

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Backward Classes

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Open Competition

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Scheduled Caste

Woman

92

Open Competition

General

93

Backward Classes

Woman

94

Minorities

General

95

Backward Classes

Woman

96

Open Competition

General

97

Scheduled Caste

Woman

98

Open Competition

General

99

Backward Classes

Woman

100

Open Competition

Woman

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